

25NNCV06200 25NNCV06200

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-07-10

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Case Number: 25NNCV06200 Hearing Date: July 10, 2026 Dept: B

Hon.

Victor Avila, Dept B

MOTION

TO COMPEL INITIAL RESPONSES AND DEEM REQUESTS FOR ADMISSIONS ADMITTED; REQUEST
FOR SANCTIONS

Hearing Date: 07/10/26

CASE NO./NAME:

25NNCV06200 Wright v. Navarrete

Moving Party: Plaintiff

Marvin Wright

Responding Party:

Unopposed

Notice: Sufficient

Ruling: GRANT

NOTICE

The Court is not requesting oral
argument on this matter. The Court is guided by California Rules of
Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested.
Unless the Court directs argument in the Tentative Ruling, no argument is

requested and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given either by email at or by telephone at (818) 260-8422.

BACKGROUND

This is a personal injury case arising from a motor vehicle accident that occurred on July 31, 2025. On September 4, 2025, Plaintiff Marvin Wright (Plaintiff) filed a Complaint against defendant Cecilia Navarrete (Defendant) alleging personal injury. On October 17, 2025, Defendant filed an Answer.

On January 16, 2026, Plaintiff filed the instant motions to compel special interrogatories, compel requests for production of documents (RPD), and deem requests for admission (RFA) admitted. Defendant has not filed any oppositions.

On April 21, 2026, the Court continued the hearings on the motions to compel special interrogatories and RPD from May 15, 2026, to May 22, 2026. The hearing on the motion to deem RFA admitted was originally set for May 22, 2026.

On May 11, 2026, the Court continued all three hearings on the instant motions from May 22, 2026, to July 10, 2026.

LEGAL STANDARD

A party must respond to interrogatories within 30 days after service. (Code Civ. Proc., § 2030.260, subd. (a).) If a party to whom interrogatories are directed does not provide timely responses, the requesting party may move for an order compelling responses to the discovery. (Code Civ. Proc., § 2030.290, subd. (b).) The party also waives the right to make any objections, including one based on privilege or work-product protection. (Code Civ. Proc., § 2030.290, subd. (a).) There is no time limit for a motion to compel responses to interrogatories other than the cut-off on hearing discovery

motions 15 days before trial. (Code Civ. Proc., §§ 2024.020, subd. (a), 2030.290.) No meet and confer efforts are required before filing a motion to compel responses to the discovery. (Code Civ. Proc., § 2030.290; Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 411.)

A party must respond to requests for production of documents within 30 days after service. (Code Civ. Proc., § 2031.260, subd. (a).) If a party to whom requests for production of documents are directed does not provide timely responses, the requesting party may move for an order compelling responses to the discovery. (Code Civ. Proc., § 2031.300, subd. (b).) The party also waives the right to make any objections, including one based on privilege or work-product protection. (Code Civ. Proc., § 2031.300, subd. (a).) There is no time limit for a motion to compel responses to production of documents other than the cut-off on hearing discovery motions 15 days before trial. (Code Civ. Proc., § 2024.020, subd. (a), 2031.300.) No meet and confer efforts are required before filing a motion to compel responses to the discovery. (Code Civ. Proc., § 2031.300; Sinaiko, supra, 148 Cal.App.4th at 411.)

A party must respond to requests for admissions within 30 days after service of such requests. (Code Civ. Proc., § 2033.250, subd. (a).) “If a party to whom requests for admission are directed fails to serve a timely response...(a) [that party] waives any objection to the requests, including one based on privilege or on the protection for work product...” (Code Civ. Proc., § 2033.280, subd. (a).) “The requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7.” (Code Civ. Proc., § 2033.280, subd. (b).)

DISCUSSION

Special
Interrogatories, Request for Production of Documents, and Requests for
Admission

Plaintiff contends that Defendant failed to timely respond to the Special Interrogatories, RPDs, and RFAs on or by the statutory deadline. (Mot. to Compel Special Interrogatories, p. 3; Mot. to Compel RPDs, p. 3; Mot. to Deem RFAs Admitted, p. 3.)

Here, Plaintiff's counsel served Defendant with the Special Interrogatories, RPDs, and RFAs by electronic service on October 21, 2025. (Omofoma Decl., ¶ 2, Exh. A.) On November 23, 2025, a day before the original deadline, Defendant's counsel requested a two-week extension, and Plaintiff's counsel granted the extension. (Omofoma Decl., ¶ 3, Exh. B.) On December 8, 2025, the day responses were due under the first extension, Defendant's counsel asked for a second extension and Plaintiff's counsel granted the second extension making responses due December 15, 2025. (Omofoma Decl., ¶ 4, Exh. B.) As of January 16, 2026, Plaintiff's counsel had not received any responses, despite giving Defendant several extensions by request and as a professional courtesy. (Omofoma Decl., ¶¶ 5-6.)

Since Defendant was properly served and Defendant has failed to respond to discovery requests by the statutory deadline and has failed to respond after multiple extensions, Plaintiff is entitled to an order compelling Defendant to provide responses without objections to the Special Interrogatories and RPDs and an order deeming RFAs admitted.

Sanctions

Sanctions are mandatory against the party, the person, or the attorney whose failure to serve a timely response to the request necessitated the motion to deem RFA as admitted. (See Code Civ. Proc., § 2033.280(c).) The Court shall impose sanction on the party, the person, or the attorney whose failure to serve a timely response to the request necessitated the motion to compel responses to interrogatories or RPD. (See Code Civ. Proc., §§ 2031.300(c), 2030.290(c); see also Cal. Rules of Court, Rule 3.1348(a) [the court can award sanctions under the Discovery Act in favor of a party seeking to compel discovery even though no opposition was filed, the opposition was withdrawn, or the requested discovery was provided to the moving party after the motion was filed].)

"A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought." (Code Civ. Proc., § 2023.040.)

The Court finds Plaintiff's Notice of Motion for each motion complies with Code of Civil Procedure section 2023.040. Here, Defendant failed to serve timely responses to Plaintiff's Special Interrogatories, RPD, and RFA by the statutory deadline. Thus, sanctions are warranted against Defendant. (See Code Civ. Proc., §§ 2030.290(c), 2031.300(c), 2033.280(c); see also Cal. Rules of Court, Rule 3.1348(a).)

Plaintiffs request monetary sanctions of \$1,800, based on \$600 for each motion, reflecting one hour incurred on preparing each motion at an hourly rate of \$600 per hour, plus the \$60.00 filing fee for all Motions. (Omofofoma Decl., ¶ 8.)

Given the similarity of the motions to each other, the shared hearing date, the lack of Oppositions and Replies, and the straightforward nature of the Motions, Plaintiffs' request for monetary sanctions against defendant Lockwood is granted in total amount of \$900, reflecting 1.5 hours incurred at \$600 per hour.

CONCLUSION
AND ORDER

Plaintiff Marvin Wright's motions to compel responses to Special Interrogatories, RPDs and deem RFAs admitted is GRANTED.

Plaintiff shall provide notice of this order.

Hon. Victor Avila

Judge of the Superior Court